

AMENDMENT NUMBER ONE TO THE
MASTER DEED OF THE
INDEPENDENCE CONDOMINIUM

Reference is hereby made to that certain Master Deed dated August 12, 1981, and recorded with the Norfolk County Registry of Deeds in Book 5909, Page 203, which Master Deed established, pursuant to Massachusetts General Laws, Chapter 183A, the Independence Condominium.

WHEREAS the Unit Owners entitled to more than seventy-five percent (75%) of the Undivided Interest desire to amend said Master Deed as provided in Paragraph 8 thereof.

WHEREAS no other consents are required therefor.

NOW THEREFORE said Master Deed is hereby amended in accordance with the provisions of Paragraph 8 of said Master Deed as follows:

1. Paragraph 7.1 is amended by adding at the end thereof before the ";" the following:

", or Chapter 183A, and all use shall be conducted in a manner consistent with the comfort and convenience of the occupants of the other Units;"

2. Paragraph 7.2 is amended by being deleted in its entirety and inserting the following in its stead:

7.2. The Owner of any Unit may at any time and from time to time move, remove, alter, change or install any interior, non-structural wall or partition lying wholly within said Unit and not in any manner comprising common areas or facilities or

a portion thereof; provided, however that such shall not adversely affect the structural integrity of the Buildings and provided further, that

(a) reasonable advance notice thereof is given to the Trustees and plans and specifications of said alteration are provided to the Trustees for their approval, which approval shall not be unreasonably withheld;

(b) all reasonable and necessary documents in amendment of the Master Deed and all plans filed therewith are provided in advance to the satisfaction of the Trustees;

(c) all necessary and proper permits and/or approvals are obtained from appropriate governmental authorities;

(d) evidence of contractors' and subcontractors' liability insurances that are in amounts reasonably satisfactory to the Trustees is provided to the Trustees, which insurances shall cover personal injury and property damage arising out of the work to be performed;

(e) all work is to be in a good and workmenlike manner in compliance with all applicable laws, ordinances, regulations and orders of governmental and quasi-governmental authorities having jurisdiction thereof and insurers of the Condominium;

(f) the work is to be diligently prosecuted and completed by a date to be reasonably set by the Trustees and performed in such a manner and during such hours as the Trustees may reasonably establish so as to minimize all interference with the peaceful enjoyment of the Condominium by its residents;

(g) any and all mechanics or materialmen's lien's are to be forthwith discharged;

(h) if warranted by the magnitude of the work to be performed, as the Trustees in their sole descretion may determine, a performance bond is posted; and

(i) such other conditions are complied with as may be reasonably imposed by the Trustees to perserve and safeguard the Condominium, its Common Elements and the peaceful enjoyment thereof by its residents.

3. Paragraph 7.3 is amended by being deleted in its entirety and inserting the following in its stead:

7.3 The architectural integrity of the Building and the Units shall be preserved and to that end: no balcony, patio, porch, garden or yard enclosure, awning, screen, antenna, storm window, sign, banner or other device, and no

exterior change, addition, structure, projection, decoration or other feature shall be erected, applied to, or placed upon or attached to any Unit, or any part thereof, on the Buildings or upon any other Common Element; no addition to or change, whether color, type of material, or otherwise, or replacement of any exterior light, window (other than the clear glass portion thereof), door, door knocker, other exterior hardware or other exterior portion of a Unit shall be made; and no painting, attaching of decalcomania or other decoration shall be done on any exterior part or surface of any Unit nor on the interior surface of any window without, in each instance, the express consent thereto in writing by the Trustees. Such restrictions shall not, however, be construed to restrict a Unit Owner's right to decorate his/her/their Unit as he/she/they should so determine; provided, however, that to the extent such decoration, when viewed from the exterior of any Unit, if such shall be so viewable, detracts, in the reasonable judgment of the Trustees, from the aesthetic or architectural integrity of the Building, the Unit Owner may be required to undertake such reasonable measures as the Trustees may determine to ameliorate such detraction. Further, such restrictions shall not be construed to restrict a Unit Owner's right to move, remove, alter or change any interior, non-structural, wall or partition, nor change the use and/or designation of any room within his/her/their Unit; provided, however, that such shall not adversely affect the structural integrity of the Buildings and provided further that all conditions found in Paragraph 7.2 of this Master Deed are complied with.

4. Paragraph 7.4 is amended by being deleted in its entirety and inserting the following:

7.4 No business activities of any nature shall be conducted in any Unit, except that the occupant thereof may maintain therein an office for professional, business or personal use; provided, however, that no employees or persons other than a resident of such Unit shall engage in any such activities and such shall not be held out or used as a place for service of clients, patients or customers, etc.

5. Paragraph 7.5 is amended by being deleted in its entirety and inserting the following in its stead:

- 7.5 A) No Unit may be leased, rented or let unless upon a written agreement therefore in a form and content acceptable to the Trustees of the Independence Condominium Trust and for a term of no less than six (6) months; and provided that:
- (i) a copy of said agreement with written notice of such intention to lease, rent or let is provided to the Trustees at least twenty (20) days prior to the execution of said agreement;
 - (ii) said Trustees shall have the power within said twenty (20) day period to denote a lessee different from the proposed lessee to execute an agreement to lease, rent or let subject Unit, with the further right to sublet, otherwise upon the same terms and conditions as offered to said proposed lessee;
 - (iii) any such agreement to lease, rent or let, in all events, must contain the following clause whereby the occupants agree to be bound by this Master Deed, the Declaration of Trust and the Rules and Regulations promulgated pursuant thereto, copies of which the Trustees shall provide to the occupants for such reasonable fee as said Trustees determine:

The building in which the unit being leased (rented) under this Lease (Occupancy Agreement) is located in a condominium building, not a rental apartment house. The condominium building is occupied by the individual owners of each unit, (except for certain units such as this one, which are being occupied by Tenants). The Tenant understands that his or her neighbors in the building are (except as aforesaid) the owners of the homes which they occupy, and not Tenants living in a rental house. The Tenant, by signing this Lease (Occupancy Agreement) acknowledges that he or she has been furnished with a copy of the Master Deed of the Condominium, the By-Laws of the Condominium Trust and the Rules and Regulations thereof, and that he or she will be expected to comply in all respects with the same, and that in the event of any noncompliance the Tenant may be evicted by the Trustees of the Condominium Trust and in addition, the Tenant may have to pay fines, penalties, and other charges over any other provision of this Lease.
 - (iv) the lessee executes a written agreement directly with the Independence Condominium Trustees under which said lessee specifically agrees to observe and be bound by the provisions of this Master Deed, the Declaration of Trust and By-Laws and all rules and regulations of this Condominium; and

(v) further provided that it shall be deemed during the period of such occupancy that the Unit Owner has irrevocably appointed and constituted the Trustees as the Unit Owner's attorney-in-fact to seek the eviction, equitable relief and/or damages of and/or from such occupants upon any breach of said agreement or a violation of this Master Deed, the Declaration of Trust and/or the Rules and Regulations promulgated pursuant thereto.

B) Any Unit Owner leasing, renting or letting his/her Unit shall be charged a Leasing Fee each time there is a change in occupancy of said Unit, said fee to be determined by the Trustees to defray their costs in processing such leasing and occupancy. Said fee shall be deemed a Common Expense attributable to the subject Unit and be enforceable as such. The moving of tenants in or out of a Unit must occur only during such hours of the day as reasonably determined by the Trustees.

C) The right to park automobiles may not be leased separately from the leasing of a Unit, except that a Unit Owner may lease his/her parking space to the owner or lessee of another Unit in the Condominium, provided that (1) such Owner of the parking space remains the owner of his/her Unit, and (2) such Lessee of said parking space is otherwise entitled to use an automobile parking space hereunder. No person other than a lessee permitted hereunder or a person entitled to live permanently in a Unit pursuant to the provisions hereof may use an automobile parking space except to the extent, if any, otherwise permitted by the Rules and Regulations hereinafter referred to.

D) A first mortgagee who obtains title to a Unit by foreclosure, or pursuant to any other remedies provided in its mortgage, or by deed in lieu of foreclosure shall not be subject to the restrictions contained in this Paragraph 7.5.

E) Notwithstanding the foregoing, no Unit may be used by a Unit Owner on a regular basis for temporary business guests, including employees, but excluding principals of a closely held corporation, where that corporation is the Unit Owner. In construing this provision it is intended that Units not be used as business guest lodging.

F) The foregoing provisions shall only apply to leasing, renting or letting of a Unit on or after the effective date of this amendment.

6. Paragraph 7.6 is amended by inserting after the first word "No" the words "animals, reptiles, or".

7. Paragraph 7.6 is further amended by adding at the end of the paragraph the following:

"Said dog or cat shall be set forth on a list, with full description of the animal, and denoting the owner and subject Unit, such list being kept on file by the Trustees. In no event shall any pet be permitted, unless carried or on a leash, in any portion of the Common Elements, and no pet shall be allowed in any grass or garden plot or, except as specified by the Trustees, areas of the Common Elements under any circumstances. Any Unit Owner keeping such a pet who violates the conditions herein or permits any damage to or soiling of any of the Common Elements or permits any nuisance or unreasonable disturbance or noise by such a pet shall:

- (i) be assessed by the Board of Trustees for the cost of the repair of such damage or of cleaning or of elimination of such nuisance and
- (ii) be required by the Board of Trustees to permanently remove such pet from the Condominium upon five (5) days' written notice from the Board.

8. This Master Deed is further amended by adding the following new Paragraphs 7.7, 7.8, 7.9, 7.10, 7.11, and 7.12 after Paragraph 7.6 and before the extant Paragraph 7.7, which will now be Paragraph 7.13:

7.7 No nuisance shall be allowed in or upon the Condominium nor shall any use or practice be allowed which interferes with the peaceful possession or proper use of the Condominium by its residents and/or occupants.

7.8 No use of the Common Elements shall be made save for the furnishing of the services and facilities for which they are reasonably suited and which are incident to the use and occupancy of Units.

7.9 No Unit Owner shall place or cause to be placed in or on any of the Common Elements, other than the storage area or exclusive use area, any furniture, packages or objects of any kind. No corridor, public hall, vestibule, passageway or stairway shall be used for any purpose other than for normal transit there through or such other purpose as the Trustees may designate.

7.10 No Unit, or other area to which a Unit Owner has exclusive rights, shall be maintained or used in such a manner as to detract from the value of the other Units or the Condominium as a whole.

7.11 No Unit shall be maintained at an ambient temperature of less than fifty-five degrees (55%) Fahrenheit during such time or times as is necessary to prevent the freezing of any and all pipes within the Buildings.

7.12 No legally immoral, improper, offensive, or other unlawful use shall be made of the Condominium, or any part thereof, and all valid laws, zoning ordinances and regulations of all governmental bodies having jurisdiction thereof shall be observed. Violations of laws, orders, rules, regulations or requirements of any governmental agency having jurisdiction thereof, relating to any Unit shall be eliminated by and at the sole expense of the Owner of said Unit and those relating to the Common Elements shall be eliminated by the Trustees at the sole expense of said Unit Owner, except as may be otherwise provided for herein.

9. Paragraph 7.7 is amended by being renumbered 7.13.

10. Paragraph 7.7, now 7.13, is further amended by adding at the end of the Paragraph the following:

The failure of any Unit Owner, or person occupying a Unit with a Unit Owner's or Tenant's consent, to comply with said restrictions will give rise to a cause of action in the Trustees, and any aggrieved Unit Owner, for the recovery of damages, or for injunctive relief, or both. No Unit Owner shall be liable for any breach of the provisions of this Paragraph except as such occur during his or her ownership of a Unit.

11. Paragraph 8 is amended by adding the following subparagraph:

8.5 The foregoing notwithstanding, the Trustees shall have the power coupled with the interest to, by an instrument signed by a majority of their number and duly recorded with the Norfolk County Registry of Deeds, amend this Master Deed to (1) correct any scrivener's error made herein; or (2) to make this Master Deed comply with Massachusetts General Laws, Chapter 183A, and other applicable state or federal laws or regulations; or (3) to comply with rules or regulations promulgated by the Federal National Mortgage Association (FNMA) or the Federal Home Loan Mortgage Corporation (FHLMC), and other so-called secondary mortgage market agencies should such come to be; or (4) to satisfy applicable insurance requirements. This power may be exercised not only to add additional provisions or to modify existing provisions, but also to delete theretofore required provisions should such no longer be required. In no event may this power be exercised in such a manner as to adversely effect the interests of the Unit Owners.

12. The Master Deed is further amended by adding on Schedule C at "E" after the word "doors" and before the word "utilized" the words "and door frames".

13. The Master Deed is additionally amended by deleting on Schedule C at "F" the phrase "the exterior surface of the glass and the interior surface of the window frames," and inserting "the exterior surface of the window and window frames," in its stead.

14. In all other respects, the Master Deed is hereby ratified and confirmed.

IN WITNESS WHEREOF we, the undersigned being a majority of the Trustees of the Independence Condominium Trust, having first received the consent of the Unit Owners entitled to more

than seventy-five percent (75%) of the Undivided Interest,
which consents are attached hereto, have set our hands and
seals this day of , 1989.

_____, Trustee
of the Independence Condominium
Trust

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of the Independence Condominium
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of the Independence Condominium
Trust

_____, Trustee
of the Independence Condominium
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COMMONWEALTH OF MASSACHUSETTS

, SS.

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Then personally appeared before me the aboved-named
and acknowledged the foregoing to be
his/her free act and deed.

Notary Public
My Commission expires:

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,SS.

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